

106	2024-01433115 Royal American Wholesale vs. Eleganza Tiles Inc	1. Motion to Be Relieved as Counsel of Record 2. Case Management Conference The unopposed motion by Jedediah Thurkettle (“Counsel”), attorney of record for Defendant Eleganza Tiles, Inc. (“Defendant”), for an order permitting Counsel to be relieved as attorney of record for Defendant in this action is continued. On April 24, 2026, Counsel filed an amended declaration in support of this motion. Counsel did not file a proof of service showing the amended declaration was served on Defendant. The hearing on this motion is continued to allow Counsel an opportunity to properly serve the amended declaration on Defendant. No later than July 16, 2026, Counsel shall file a proof of service showing the amended declaration was properly served on Defendant. Counsel shall provide notice of the continuance to Defendant and all parties that have appeared in this action. No later than July 16, 2026, Counsel shall file a proof of service showing the notice of continuance was properly served on Defendant and all parties that have appeared in this action. Counsel is also ordered to file a revised order. Hearing on this motion is continued to September 14, 2026 at 2:00 PM in Department C27. The case management conference in this matter is continued to the same date and time. Counsel is ordered to give notice.
107	2025-01537289 Flores vs. California Pizza Kitchen, Inc.	1. Motion to Compel Arbitration 2. Case Management Conference Defendant California Pizza Kitchen’s motion to compel arbitration of Plaintiff’s claims is granted. Defendant’s objections are overruled. Defendant submits a declaration of its People Systems Manager, Tera Thamawatanakul, who describes the hiring/onboarding procedure that Plaintiff went through and authenticates the arbitration agreement. (Thamawatanakul Decl., ¶¶ 3-11, Exs. A. B.) Specifically, she states that when Plaintiff applied for employment she created a Workday online account, through which Defendant sent onboarding documents after Plaintiff was hired. (Thamawatanakul Decl., ¶¶ 7, 8.) The arbitration agreement was included in these onboarding documents. Based on Defendant’s records, Plaintiff electronically acknowledged that she had read the policy on 6/29/22. (Thamawatanakul Decl., ¶¶ 8, 11, Ex. B.) In opposition, Plaintiff argues that she was not aware she was agreeing to arbitrate her claims when she acknowledged receipt of the employment documents. (Flores Decl., ¶ 2.) Plaintiff’s declaration is self-contradictory. She states both that “[a]s part of the onboarding process, I was required to log into Defendant’s Workday portal and review numerous onboarding materials and company documents,” and also that “I clearly did not actually review the documents, and nobody told me I needed to.” (Flores Decl., ¶ 2.) Plaintiff concedes that “Defendant’s own evidence establishes only that employees checked a box stating: ‘I have read and acknowledged the policy/notice in its entirety.’”

(Opposition at 3:2-4; Flores Decl., ¶ 2.)

"It is hornbook law that failing to read an agreement before signing it does not prevent formation of a contract." (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 759.) "That settled rule cannot be evaded by adding, 'and if I had read the contract, I wouldn't've signed it.'" (*Id.*)

Here, Plaintiff acknowledges that she received and was required to review the agreement which was titled "Agreement to Individually Arbitrate any Disputes ("Arbitration Policy")," in underlined bold font, and stated "you and CPK also agree that any Covered Disputes can only be resolved through mandatory individual final and binding arbitration between you and CPK."

Additionally, the agreement stated that "[y]our submission of an application for employment, acceptance of employment, or continuation of employment with CPK is deemed your acceptance of and agreement to be bound by all of the terms and provisions of this Arbitration Policy, subject to your right to elect to not be bound by this Arbitration Policy, as described below..." (Thamawatanakul Decl., Ex. A.)

By electronically signing her acknowledgment of this, the Court finds that Plaintiff agreed to arbitrate her claims. (See Civ. Code, § 1633.2(h) ("Electronic signature" means an electronic sound, symbol, or process attached to or logically associated with an electronic record and executed or adopted by a person with the intent to sign the electronic record.").)

Unconscionability

Unconscionability is one ground on which a court may refuse to enforce a contract, including an arbitration agreement. (Civ. Code §1670.5.) Whether a provision is unconscionable is a question of law. (Civ. Code §1670.5(a); *Flores v. Transamerica* (2001) 93 Cal. App. 4th 846, 851.)

To be unenforceable, a contract must be both procedurally and substantively unconscionable, but the elements need not be present in the same degree. The analysis employs a sliding scale: "...the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal. 4th 83, 114; *Mercuro v. Superior Court* (2002) 96 Cal. App. 4th 167, 174-75.)

Plaintiff argues that the agreement is procedurally unconscionable because she was not provided the opportunity to negotiate any of the terms, and she was required to acknowledge the agreement to get the job. Plaintiff argues that this is a contract of adhesion.

This is not actually true. The Agreement contains the following:

Option To Not Be Bound By Arbitration Policy: Not later than the 30th calendar day after the date you first receive a copy of this Arbitration Policy (the "Election Deadline"), you can elect to not be bound by this Arbitration Policy by giving CPK written notice of such election (an "Election Notice"). CPK does not have a preference as to whether you elect to not be bound by this Arbitration Policy, and you should feel free to do so without fear of retaliation or reprisals by CPK, which

		is strictly prohibited The Court finds that Plaintiff has not shown that the agreement is procedurally unconscionable. With regard to substantive unconscionability, Plaintiff contends the agreement provides that the parties will share equally in all fees and costs. This also is not 100% accurate as the agreement expressly conditions this on applicable law, noting that if required, CPK will pay all costs unique to arbitration. Additionally, Plaintiff argues that the provision is confusing because it attempts to impose the Federal Rules of Civil Procedure (“FRCP”) and Federal Rules of Evidence (“FRE”) within a private JAMS employment arbitration proceeding, is one-sided, and overbroad. These arguments are unavailing and not supported by any applicable legal authority. Notwithstanding this, Plaintiff must show both procedural and substantive unconscionability in arguing that the agreement is unenforceable. (See <i>Armendariz, supra</i>, (2000) 24 Cal. 4th at 114.) Given that Plaintiff could have opted out of the agreement without affecting her employment, procedural unconscionability has not been shown. The motion is granted. This matter is hereby stayed pursuant to Code Civ. Proc., § 1281.4. The case management conference is vacated. The Court sets a status conference on July 19, 2027 at 10:00 a.m. in Dept. C27 re: the status of arbitration. Defendant is ordered to give notice.
108	2024-01399043 Madrid vs. Ford Motor Company	1. Motion for Attorney Fees 2. Order to Show Cause re: Dismissal on Settled Case The Court grants Plaintiff Abraham Madrid’s Motion for attorney’s fees against Defendant Ford Motor Company in the amount of \$32,812.50. The Court denies the request for any “Lodestar” enhancement. The Court will also enter a judgment for costs for \$2,359.90, the amount requested. Plaintiff is ordered to prepare a proposed judgment, including the costs in the amount requested, as no timely motion to strike or tax costs was filed. The Court intends on dismissing this matter with prejudice in light of the fact that this matter has settled. If Plaintiff opposes the Court’s tentative ruling in this regard, Plaintiff’s counsel should attend the hearing and be prepared to address the OSC. Plaintiff is ordered to serve notice of this ruling.
109	2025-01526045 Freeman vs. Massage Envy Franchising, LLC	1. Demurrer to Complaint 2. Motion to Strike Complaint 3. Case Management Conference A. Demurrer